

Mark A. Garcia
7403 Creekbluff Dr
Austin, TX 78750
[REDACTED] • [REDACTED]

[Date: TBD]

NYOS Charter School
Attn: Public Information Act Request
12333 N Lamar Blvd
Austin, TX 78753
openrecords@nyos.org

Re: Texas Public Information Act Request — Request 2 of a series. NYOS board meeting records during Dr. Alan Seay's interim tenure (February 13 – June 27, 2024).

Dear Public Information Officer:

Pursuant to the Texas Public Information Act, Texas Government Code Chapter 552, and as applied to open-enrollment charter schools by Texas Education Code § 12.1051, I respectfully request the following public information from NYOS Charter School, Inc.

This is one of a planned series of narrowly-scoped requests. Submitting them in sequence is intended to ease your office's workload and to allow rolling production of records as they are located. The records sought below are limited to the specific subject described in the Re: line.

Records sought

For the period from **February 13, 2024 through June 27, 2024** — during which NYOS board agendas were co-signed by “Dr. Alan Seay, Ed.D., Interim Executive Director”:

1. Complete minutes for every NYOS Board of Trustees meeting held in the period above — including, at minimum, the regular meetings on March 26, April 16, May 14, June 11, and June 27, 2024, and any special, called, or emergency meetings held in that window (including the special meeting on or about May 20, 2024).
2. The posted agenda for each meeting identified in item 1, together with any back-up materials, board packets, presentations, handouts, or written reports distributed to trustees in advance of or during the meeting.
3. Any executive-session certification recorded under Texas Government Code § 551.103 for closed sessions held during any meeting identified in item 1, including the citation to the Government Code provision (e.g., § 551.071, § 551.074, § 551.076) under which each closed session was convened.

4. For any consent-agenda item that was removed for separate discussion during a meeting identified in item 1: the item as originally posted, the trustee who requested removal, and the substantive action subsequently taken on the item.

Format and delivery

I request electronic copies of responsive records, delivered by email to the address above. Where original records exist only in physical form, electronic scans (PDF or comparable format) are acceptable.

Cost

Pursuant to Texas Government Code § 552.2615, please provide an itemized written estimate in advance of any charge that, in total, would exceed \$100.00. I am prepared to authorize production at or below that amount; above that figure, I ask to be contacted before work proceeds so that I may narrow the scope or authorize the additional cost.

Student information

This request does not seek personally identifiable student information. To the extent any responsive record incidentally contains information governed by the Family Educational Rights and Privacy Act (FERPA), please redact that information and produce the remainder.

Partial and rolling production

If any portion of this request is denied, withheld, or determined by NYOS to require an Attorney General ruling under Texas Government Code § 552.301, I respectfully ask that the remaining responsive records be produced on a rolling basis rather than the entire response being withheld pending resolution of any single category.

Acknowledgment

Please confirm receipt of this request at your earliest convenience. I understand that NYOS has 10 business days under § 552.221(d) either to produce the responsive records, certify a date by which production will occur, or seek an Attorney General ruling for any portion claimed exempt.

Thank you for your time and for the work your office does in fulfilling these requests.

Respectfully,

Mark A. Garcia

NYOS parent · [Date: TBD]